

more important when the objection relied on non-documentary prior art, because such evidence was more difficult to verify.

3.2. Same purpose or effect

According to established case law (see for example T 2057/12, T 1148/15, T 96/20, T 2443/18), a central consideration in selecting the closest prior art is that it must be directed to the same purpose or effect as the invention, otherwise it cannot lead the skilled person in an obvious way to the claimed invention. In T 14/17, the board held that if this purpose was not explicitly set out or could not be inferred from the claims, the question to be answered was what, in the light of the application or patent as a whole, was to be achieved by the claimed invention.

According to T 606/89 the closest prior art for the purpose of objectively assessing inventive step is generally that which corresponds to a **similar use** requiring the minimum of structural and functional modifications (see also T 574/88, T 686/91, T 834/91, T 482/92, T 59/96, T 650/01, T 1747/12).

In T 273/92 the board confirmed the established case law that a document could not qualify as the closest prior art to an invention **merely because of similarity** in the composition of the products; its suitability for the desired use of the invention also had to be described (see also T 327/92). According to T 506/95 the closest prior art was the art most suitable for the purpose claimed by the invention, not the art superficially showing structural similarities. Ideally, that purpose should already be mentioned in the prior art document as a goal worth achieving (T 298/93, T 859/03, T 1666/16). The aim was that the assessment should start from a situation as close as possible to that encountered by the inventor. The real-world circumstances had to be taken into account. If it was not clear what the closest prior art was, the problem and solution approach should be repeated taking possible alternative starting points (T 710/97, T 903/04, T 2123/14).

In T 2255/10 the board (with reference to T 482/92) stated that in establishing the closest prior art, the question to be asked was, what, in the light of the application as a whole, would be achieved by the invention as claimed. Statements of purpose must be read in conjunction with the claims. Merely inserting such a statement into the description does not entitle an applicant effectively to "veto" any inventive step objection based on a document which is unrelated to this purpose, if it is not plausible that the invention as claimed would actually achieve the stated purpose.

In T 53/08 the board, in deciding whether document (1) or document (10) had to be regarded as the closest prior art, considered the patent's objective, which was to develop the highly effective herbicidal ingredient of formula (A1) in such a way that it did not significantly damage crops when used in a concentration with herbicidal effect. The natural starting point for the invention was therefore the document disclosing the active ingredient of formula (A1).

In T 2571/12 the board held that, in the case of claims directed to medical uses, the closest prior art is usually a document disclosing the same therapeutical indication.

In T 1076/16 the board considered that a piece of prior art could not be immediately ruled out as a possibly suitable starting point merely because it had a different purpose from the invention or fewer technical features in common with the invention than other, seemingly "closer" prior art. Depending on how the criteria "similar purpose" and "common features" were weighed up against each other, there were often several reasonable starting points, each offering a different route that might lead to the invention without the need for hindsight. The board endorsed the case law developed in a number of decisions (T 405/14, T 2057/12 and T 1742/12) that, for a finding of a lack of inventive step, it was enough that the invention was obvious to the skilled person from the prior art in the light of just one of those routes.

In T 1148/15 the board held, in response to a misunderstanding of the case law by the appellant, that if the closest prior art also had to disclose the purpose or effect of the distinguishing feature(s), it would mean that only items of prior art which contained a teaching towards the distinguishing feature(s) would qualify as the closest prior art. This was not required by the problem-and-solution approach because the teaching towards the distinguishing feature(s) may come from another item of prior art or from the skilled person's common general knowledge. In other words, the closest prior art does not have to disclose all the problems solved by the claimed invention. In particular, it does not have to disclose the objective technical problem, which is determined only in the next step of the problem-and-solution approach.

3.3. Similarity of the technical problem

A document serving as the starting point for evaluating the inventive merits of an invention should relate to the same or a similar technical problem or, at least, to the same or a closely related technical field as the patent in suit (T 495/91, T 570/91, T 989/93, T 1203/97, T 263/99, T 1634/06).

In T 439/92 the board pointed out that one of the criteria for determining the closest prior art was the problem already stated in the patent. In many cases it was reasonable for there to be a link between this problem and the prior art chosen as being closest. See also in this chapter I.D.4.2.2 "Problem formulated in the patent application as starting point".

In T 698/10 the board held that the closest prior art did not have to disclose all the problems solved by the claimed invention. In particular it did not have to disclose the objective technical problem, which was only determined in the second step of the problem and solution approach based on the technical effect(s) provided by those features distinguishing the invention as claimed from the closest prior art. See also T 638/16, T 1148/15, T 1112/19.

In T. 325/93 the board stated that the problem addressed by the application was neither derivable nor indeed recognisable from the disclosure of D2 which, according to the department of first instance and the appellant, represented the closest prior art. As early as T. 686/91, another board had observed that a document not mentioning a technical problem which was at least related to that derivable from the patent specification did not normally qualify as the closest prior art for inventive step purposes, however many technical features it may have in common with the subject-matter of the patent concerned (see also T. 410/93, T. 708/96, T. 59/96, T. 827/00, T. 979/00, T. 496/02, T. 1666/16).

In T. 644/97 the board concluded that a technical problem arising from a "closest prior art" disclosure which was irrelevant to the claimed subject-matter (in the sense that it did not mention a problem that was at least related to that derivable from the patent specification) had a form such that its solution could practically never be obvious, because any attempt by the skilled person to establish a chain of considerations leading in an obvious way to the claimed subject-matter was bound to fail (see also T. 792/97 and T. 599/03). However, according to the board in T. 1408/09, it is not a requirement for obviousness that the starting point in the prior art addresses the same technical problem as the claimed invention.

In T. 835/00 D1 did not mention any of the problem aspects addressed by the claimed invention. As a consequence, a technical problem was created which was unrelated to the actual disclosure of D1 but whose solution was then found to be obvious in the light of the disclosure of D2. The board referred to T. 686/91 and stated that it was a fatal defect that a prior art disclosure from which no relevant technical problem could be formulated without inappropriate hindsight had been chosen as a starting point for the application of the problem and solution approach, because without such hindsight any attempt to establish a logical chain of considerations which might lead to the claimed invention inevitably ran into difficulties at the start, for want of a relevant identifiable goal or object. If the relevant problem was not derivable from the alleged closest prior art, the measures for its solution were a fortiori not derivable. In other words, the invention was not obvious in the light of such art. See also T. 548/03, T. 1898/07, T. 638/16.

In T. 25/13, D4 related to tumble dryers and so came under domestic appliances, a field neither the same nor even closely related to that of the invention, namely automotive technology. For that simple reason, it could not be "the closest prior art". The board, however, held that opponents were essentially free to choose the starting point for assessment and that their choice then had implications for the technical knowledge of the relevant skilled person.

3.4. Most promising starting point

3.4.1 General

The boards have consistently held that, where more than one document is cited as the closest prior art, the one which must be deemed the closest is that which provides the skilled person with the most promising springboard to the invention, i.e. the one starting from which the subject-matter of the invention is rendered most obvious (T. 656/90, T. 824/05, T. 1755/07, T. 698/10, T. 1940/16).

In T 698/10 the board held that the expression "closest prior art" did not mean that it must be sufficiently close to the claimed invention on an absolute basis, but only that it must be relatively closer to the claimed invention than the other prior-art disclosures, i.e. it was selected as the most promising starting point - or the most promising springboard towards the invention.

In T 694/15 the board was of the opinion that the terminology "closest prior art" was somewhat misleading and that it was perhaps preferable to use the terminology "starting point (in the prior art)". It could be economical to start from prior art that is in some sense close to the invention, in the hope that the consideration of this single starting point would be enough to establish whether the claimed subject matter would have been obvious. However, if this failed, before arriving at the conclusion that the subject matter would not have been obvious, it was necessary to consider other possible starting points. The board considered that what was decisive for establishing obviousness was not the closeness of the starting point but the overall likelihood of the path, given the starting point.

However, when assessing inventive step, care must be taken to avoid an ex-post-facto approach. A skilled person endeavouring to arrive at a simple construction is unlikely to begin by using prior art relating to an exceptional embodiment with a complex mechanism, and then to omit this mechanism from the invention (T 871/94). In T 2114/16 the board found that an inventive step objection based on selecting a clearly disadvantageous starting point from prior art document E22 would necessarily be contaminated by hindsight, since this choice could only be motivated by the previous knowledge of the claimed invention. Following the problem-solution approach, the skilled person would start from the teachings of the exemplary embodiments of E22.

In T 1599/14 the board considered that there was nothing to prevent the appellant (opponent) from choosing as a starting point for its argument a piece of prior art or an embodiment that was less promising than other disclosures or embodiments which, on the face of it, were closer to the claimed subject-matter. See also T 405/14 in which the board concluded that every objection of lack of inventive step had to be assessed on its own merits and that a document selected as starting point could not be excluded only because some seemingly more promising item of prior art was available.

In T 1841/11 the board stated that even if prior art relating to the same purpose was available, it was not excluded that a document relating to a similar purpose might be considered to represent a better – or at least an equally plausible – choice of closest prior art, provided that it would be immediately apparent to the skilled person that what was disclosed in the document could be adapted to the purpose of the claimed invention in a straightforward manner, using no more than common general knowledge. See also T 1160/12, T 1518/17.

In T 816/16 the board held that the question of whether a particular disclosure was closer or further removed in relation to the subject-matter claimed was irrelevant. Starting the assessment of inventive step from the "closest prior art" served the purpose of avoiding the need to consider a multitude of potential starting points as it could be assumed that wherever a particular claimed subject-matter involved an inventive step having regard to

this "closest prior art", it would all the more involve an inventive step when the assessment was based on a disclosure which was not the "closest" prior art.

In T. 1518/17 the board held that where two documents were both suitable to serve as the closest prior art, it was necessary that an inventive step be demonstrated with respect to each. A finding of obviousness in respect of one document would necessarily lead to the conclusion that the requirements of Art. 56 EPC were not met even if the same exercise on the basis of the other document would lead to a different conclusion. See also T. 23/17.

In T. 787/17 the board held there was **no need for special justification**, e.g. on the basis of the skilled person's considerations. In particular, whether such an element gave any indication as to how to solve the objective technical problem was irrelevant to its selection as a starting point, for the simple reason that the objective technical problem could only be defined on the basis of the starting point. Nor was there any need to justify why the skilled person would proceed from one particular embodiment among a large number of embodiments in a pre-published document. Each of the embodiments constituted an element of the prior art that was known per se to the (notional) skilled person and could therefore equally serve as a starting point.

3.4.2 Most promising springboard

In T. 254/86 (OJ 1989, 115) the board described the objectively closest prior art as the "most promising springboard" towards the invention available to the skilled person (see also T. 282/90, T. 70/95, T. 644/97, T. 1939/12, T. 369/12).

In T. 824/05 the board was faced with the situation of two alternative starting points equally suitable for the assessment of inventive step, whereby one starting point, i.e. D11, lead to the conclusion that the claimed subject-matter was obvious and the other starting point, i.e. D1, gave the opposite result. The board held that in this situation D1 did not qualify as the closest state of the art because it did not represent the most promising springboard towards the invention.

In T. 1742/12 the board held that if a piece of prior art could be identified as the "closest" prior art or the "most promising springboard" and it could be shown that, starting from this prior art, the claimed invention was non-obvious, then the claimed invention could only be even less obvious starting from any other piece of prior art, and therefore a detailed inventive step assessment starting from the other prior art could be dispensed with. However, the choice of the closest prior art may not always be unambiguous and, in such a case, the problem-solution approach may have to be repeated starting from other pieces of prior art (see T. 710/97).

In T. 64/16 the board expressed the view the problem-and-solution approach did not require a selection of the "most promising" springboard to the exclusion of any other document. In practice, it makes sense to limit this investigation to prior-art items that are at least "promising" in that potentially a realistic path exists from the prior-art item towards the invention. In many cases, only one "closest" prior-art item needs to be considered